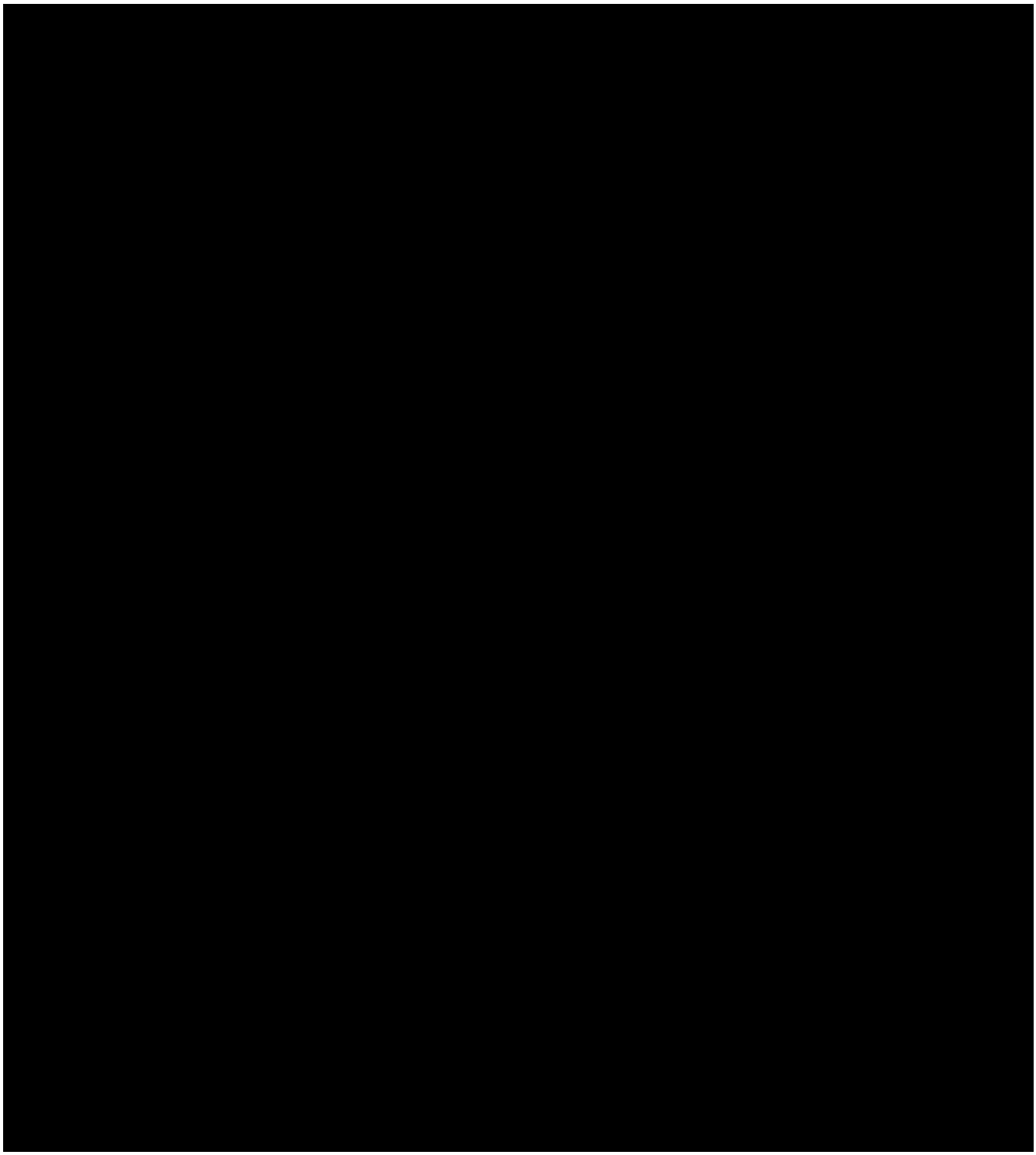

JUSTICE AND RELATED LEGISLATION (MISCELLANEOUS AMENDMENTS) BILL (No. 14)

Second Reading

[4.31 p.m.]

Mr BARNETT (Lyons - Minister for Justice) - Honourable Speaker, I move -

That the bill now be read a second time.

This bill contains amendments that update, clarify and improve four different acts, three of which are within my Justice portfolio and one that falls under the responsibility of the Minister for Housing, Planning and Consumer Affairs.

In September last year, I informed the House that I was obtaining advice on the avenues available to family members to access coronial records. One of the amendments in this bill is made in response to that advice.

I take this opportunity to again acknowledge the Westbrook family and their continued efforts to advocate for an improved coronial system in Tasmania. Their advocacy was born out of the tragic loss of Eden Westbrook. It is recognised that they provide a unique perspective on coronial processes in Tasmania. My heartfelt condolences remain with the Westbrooks.

The Coronial Division of the Magistrates Court has an important role to play in Tasmania's justice system. The remaining amendments in the bill arise from requests from the Tasmanian Civil and Administrative Tribunal, the Director of Public Prosecutions and WorkSafe Tasmania within the Department of Justice.

I will now outline the reasons for each of the proposed amendments in turn. This bill amends the *Coroners Act* to insert section 58C that requires coronial records to be provided to the senior next of kin in certain circumstances. The *Coroners Act* specifies that the senior next of kin is the first available person in a list contained in section 3A of the act, commencing with the deceased's current spouse. Section 3 of the act defines 'spouse' as:

> *spouse* includes the other party to a significant relationship, within the meaning of the *Relationships Act* 2003

The act sets out the procedures for investigations and inquests by coroners and, in doing so, allocates various rights to the senior next of kin. It is, therefore, appropriate to extend the amendment to this person. Other persons may still apply for access to coronial records under rule 26 of the *Coroners Rules 2006*.

Under section 58C, the senior next of kin may apply in writing for a coronial record. The definition of a coronial record includes any record held by the court in relation to an investigation of a death under the *Coroners Act* and includes a post-mortem report, a document on the court's file and a transcript of recording of oral evidence given to the court. This definition includes all evidentiary material held by the court in relation to a coronial investigation of a death, including documents, photographs and other material of evidentiary value.

The definition also includes such records that can be lawfully provided to the court under this or any other act. That ensures that the court can obtain relevant information that it may not currently hold on the file to disclose to the senior next of kin. For example, this might include autopsy photographs held by the pathologist which informed the written report, but are not on the court file.

A coronial authority may not refuse a request unless satisfied on reasonable grounds that release of the coronial record is prohibited by the act or another act, such as 57 of the act, which, when appropriate, restricts publication of reports of proceedings or would be contrary to national security or personal security, or would prejudice the investigation of breaches of the

law, the administration of the law or a fair trial of a person. For example, it may be that certain information cannot be disclosed until related criminal proceedings are concluded.

In the event that release of the record would be refused on these grounds, the coronial authority may redact the record to the extent necessary to enable the record to be released.

The draft bill released for public consultation proposed an additional ground based on the impact to the health and wellbeing of the senior next of kin in receiving a coronial record. The draft proposed to refer a copy of the coronial record to a medical practitioner nominated by the senior next of kin. The intended purposes of this was to facilitate a discussion between the senior next of kin and medical practitioner about the record and provide an opportunity to discuss any medical terminology used. After the discussion, if the senior next of kin still wished to have a copy of the record, the medical practitioner could release it to them.

The bill before the parliament has been amended to remove this ground based on the feedback from Mr and Mrs Westbrook and consideration of submissions and approaches in other jurisdictions. This recognises that the question of whether to seek medical advice or counselling before viewing the records provided is ultimately a matter for the senior next of kin and not appropriate to mandate in the bill.

The bill was also amended, based on their feedback and with consideration of submissions and other jurisdictions, to require the coronial authority to apply to all coronial records, not just post-mortem records and reports.

I have personally met with Jason and Amanda Westbrook and I am grateful for the information they have shared with me and for the time they have taken to provide feedback on these amendments.

Since the bill was tabled, I have continued to consider these issues and now flag my intention to propose further amendments in the committee stage to ensure the rights of senior next of kin to appropriate records are promoted. These amendments will:

- replace the power to impose conditions on the use or release of the record with the power only to order that the record not be published, ensuring that use of records by senior next of kin is not subject to other kinds of restriction; and

- insert a ground to refuse a request for a record if the coroner is satisfied on reasonable grounds that it would be contrary to the public interest to release the record due to the release having an unreasonable intrusion on the privacy of another person other than the deceased person to which the request relates. The record can still be released in redacted form and in certain appeal provision to either the Chief Magistrate or the Supreme Court so a senior next of kin has a clearer process for review of a coroner's decision.

The amendments to the *Coroners Act* provide for a clear and direct right of access by senior next of kin to coronial records. This is essential in the spirit of open justice to ensure transparency, accountability and public confidence in our justice system.

I also hope that the provision of this material can provide some amount of closure to families following an investigation into a death.

I would like to express my appreciation for the hard work of the Chief Coroner, the coroners, the Coronial Division and many others involved in this jurisdiction. They do a great service to the community, with over 1000 reportable deaths investigated in 2023-24 and 31 inquests that year. They have worked to facilitate access to records under their current practices and rules and provide support to family members every day. I particularly note the great initiative of a dedicated coronial liaison officer who assists family members understand the coronial process and comes to terms with the grief and trauma of losing loved ones.

There have been understandable concerns in the community that the right balance of access to records has not been clearly provided for in the legislation to date. This bill gets the balance right to ensure access to these records by senior next of kin, acknowledging the sensitive and private nature of these records. I am pleased that this bill provides certainty and clarity to the law for the community and the court.

Amendments to the *Corrections Act 1995*: Part 3 of the bill makes minor technical amendments to update Sections 68 and 69 of the *Corrections Act*. These amendments reflect the repeal of Section 19 of the *Sentencing Act 1997* and commencement of its replacement Section 7 of the *Dangerous Criminals and High Risk Offenders Act 2021*.

Amendments to the Tasmanian Civil and Administrative Tribunal Act 2020. Amendments to the *Tasmanian Civil and Administrative Tribunal Act 2020* (TASCAT Act) - section 98 of the TASCAT Act is about representations of a party to proceedings. It says: a party to proceedings before TASCAT is entitled to appear personally, be represented by a lawyer or, with leave of TASCAT, be represented by another representative.

The bill amends section 98(3)(c) to allow a lawyer subject to disciplinary proceedings under the *Legal Profession Act 2007,* or corresponding law in another state or territory, to appear as a representative. This prohibition is proposed to be removed on the basis that disciplinary proceedings are not necessarily an indicator of wrongdoing, and it presupposes a finding of guilt before proceedings are resolved. Frivolous or vexatious disciplinary proceedings brought by third parties may unfairly impact upon lawyers, preventing them from appearing before TASCAT.

Under the *Legal Profession Act*, the Legal Profession Board of Tasmania may suspend a lawyer's practising certificate if they are subject to disciplinary proceedings. In those circumstances, a lawyer will not be eligible to appear under section 98(3)(a) of the TASCAT Act and this remains unchanged.

Amendments to the *Workers Rehabilitation and Compensation Act 1988*: Currently, under the *Workers Rehabilitation and Compensation Act 1988*, a workers compensation certificate must be signed by a medical practitioner. The amendment to this act inserts section 77I, which provides that in certain circumstances a nurse practitioner may also sign a workers compensation certificate: a nurse practitioner may issue a certificate if they are employed in an emergency department of a hospital or other prescribed circumstance or for a prescribed purpose, and in issuing the certificate they are acting in accordance with that employment.

The bill also requires that the issue of any certificate be in accordance with a certificate protocol. A certificate protocol must be prepared by the Department of Health and approved by the Secretary of the Department of Health and the WorkCover Board. It will outline the circumstances or conditions under which a nurse practitioner may issue a certificate, for example: that a certificate be time limited or relate to new injuries that have not been previously treated. A certificate protocol will come into force seven days after it has been approved and must be published on the Department of Health's website. This provides time for nurse practitioners to be notified.

Nurse practitioners are advanced practice nurses educated to a Masters level in their specific specialty of practice. Nurse practitioners can access and treat patients, order diagnostic tests and write prescriptions.

This amendment will reduce duplication and service costs and result in a more efficient health system as patients will no longer require reassessment by a medical practitioner for the purposes of a workers compensation certificate. It will also improve the patient experience, as an injured worker will no longer have to wait to see a doctor for that important piece of paper.

I thank the members of the public who provided comments on this bill, as well as other justice stakeholders who were consulted during the drafting of this bill. Your feedback was carefully considered and is valued. It ensures that Tasmania's legislation is fit for purpose.

I commend the bill to the House. Thank you, Speaker.